

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 8/7/2026 10:00 AM

#	Case Name	Tentative
1	Schafer vs. FPG Labs, LLC 30-2025- 01487113-CU- PO-CJC	Motion to Sever Moving Defendants from Action Defendants FPG Labs, LLC d/b/a Ovation Fertility, US Genetic Lab d/b/a Ovation Genetics' (collectively the "Labs Defendants") motion to sever moving defendants from action is DENIED. Section 1048 no longer authorizes severance. (<i>Morehart v. County of Santa Barbara</i> (1994) 7 Cal.4th 725, 737, fn. 3.) The court can no longer sever a cause of action, issue, or party into a separate lawsuit and can only order a separate trial. (<i>Ibid.</i>) There is insufficient grounds to order a separate trial under Code of Civil Procedure sections 379, 379.5, and/or

		1048 and the court declines to exercise its discretion to make such an order. Plaintiff's claims are "are based on the defendants: (1) knowledge and combined promotion of PGT-A; (2) handling of the same genetic material; (3) combined delay in informing the Plaintiff of the laboratory error" (Opp. p. 4.; see FAC ¶¶ 9-54.) Thus, many witnesses of the underlying facts and for Plaintiff's damages will overlap between all Defendants and would have to appear at both trials. Moreover, there is insufficient prejudice regarding the Lab Defendants' claim of the jury conflating responsibilities or obligations at trial. The Labs Defendants will be able to participate in trial and object to this tactic and be able to present their own evidence of the limitations of their responsibilities and duties to Plaintiff. The claims arise from the handling and testing of four embryos and the recommendations based on those tests results, and trying the claims in a single trial will promote judicial economy. Clerk to give notice.
2	Thomas vs. City of Rancho Santa Margarita 30-2024- 01396694-CU- PO-CJC	Motion for Determination of Good Faith Settlement Defendant Andre Landscape Service, Inc.'s motion for determination of good faith settlement is DENIED. Defendant Andre Landscape Service, Inc. ("Movant") moves for an order determining its \$100,000 settlement with Plaintiff is in good faith. Defendants Rancho Santa Margarita Landscape and Recreation Corporation ("SAMLARC") and Mission Landscape Companies, Inc. ("Mission") (collectively "Non-Settling Defendants") separately oppose the motion. When determining whether a settlement is made in good faith, the court must determine whether "the amount of the settlement is within the reasonable range of the settling tortfeasor's proportional share of comparative liability for the plaintiff's injuries." (<i>Tech-Bilt, Inc. v. Woodward-Clyde & Assocs.</i> (1984) 38 Cal.3d 488, 499 (<i>Tech-Bilt</i>)). In making such a determination, the court considers the following factors: (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; and (6) the existence

		of collusion, fraud or tortious conduct aimed to injure the interests of nonsettling defendants. (<i>Id.</i> at pp. 499-500.) “[P]ractical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement. ‘[A] defendant’s settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant’s liability to be.’ ” (<i>Id.</i> at p. 499.) Plaintiff alleges while walking over a greenway along Alma Daisy in the City of Rancho Santa Margarita, her foot got caught in a latent hole causing her to fall and sustain injuries to her ankle. Plaintiff alleges the latent hole was created and maintained by defendants over a course of years creating a persistent and dangerous condition. In its first amended cross-complaint, SAMLARC alleges four causes of action for (1) implied and equitable indemnity, (2) express contractual indemnity, (3) comparative contribution, and (4) declaratory relief. Regarding express contractual indemnity, SAMLARC alleges it entered into a contract with Movant on 10/25/2022, which renewed on 9/26/2023, for the provision of landscape maintenance services in accordance with the terms and conditions of SAMLARC’s Master Agreement for Goods and/or Services, which contains an indemnity clause. Movant has not provided evidence of its proportionate liability in the moving papers or reply. It only offered a series of assumptions it bears little to no liability. Non-Settling Defendants’ evidence establishes Movant bears more than little to no liability. In the face of this conflicting evidence, the conclusory declaration of Movant’s attorney does not support a finding that Movant has no liability. (See <i>Mattco Forge, Inc. v. Arthur Young & Co.</i> (1995) 38 Cal.App.4th 1337, 1351 [settling party did not offer any evidence regarding its proportionate liability, only “a series of questionable assumptions” to show settlement amount reasonable].) Regarding allocation of settlement proceeds, while Movant indicates the settlement amount can be allocated to economic and non-economic damages in equal share, Movant fails to provide any evidentiary basis supporting the valuation of Plaintiff’s claims or SAMLARC’s contractual indemnity rights, or explanation regarding
--	--	---

		how the settlement accounts for the distinct theories of liability asserted against the various parties. Lastly, Movant fails to address its financial conditions and insurance coverage other than to state they were not factors in the settlement. However, they remain <i>Tech-Bilt</i> factors the court must evaluate to make a good faith determination. Movant to give notice.
3	Matthew P. Wade, in his capacity as Trustee of the ML Wade Family Trust under the provisions of a trust agreement dated September 12, 2013, vs. Scott English Plumbing Inc. 30-2024-01448700-CU-BC-CJC	Motion for Leave to Intervene Non-party AzGuard Insurance Company's motion for leave to intervene is DENIED as it has not included a proposed complaint-in-intervention along with its motion. (Code Civ. Proc., § 387, subd. (c).) While AzGuard references a proposed complaint-in-intervention attached as Exhibit D to the Shapiro Declaration (ROA 70, Ntc. of Mtn. at 2:1-3), the declaration does not include an Exhibit D or otherwise attach a copy of the proposed pleading. (ROA 66.) Clerk to give notice.
4	Holcomb vs. Aliso Villa Condominium Association 30-2026-01559179-CU-NP-CJC	Motion For An Order Declaring Plaintiff Scott Palmer Holcomb a Vexatious Litigant and Requiring Plaintiff to Furnish Security of \$200,000 The motion for order deeming Plaintiff Scott Palmer Holcomb a vexatious litigant and requiring Plaintiff to furnish security of \$200,000 by Defendant Aliso Villas Condominium Association and Total Property Management, Inc. is CONTINUED to 9/4/2026 at 10:00 a.m. Volumes 1-2 of Defendants' Requests for Judicial Notice appear to include Exhibits 1-24, although Volume 2 is not indexed with pdf exhibit numbers to make it easily searchable by the Court. However, Volumes 3 and 4 of Defendants' Request for Judicial Notice do not contain any of the remaining exhibits 25-39 – they merely contain declarations describing the exhibits. Defendants are ORDERED to file a complete amended compendium of exhibits Volumes 3-4, which should include pdf documents that are text-searchable and indexed by exhibit number, similar to Volume 1 of Defendants' exhibits.

		Defendants shall file and serve their complete amended exhibits no later than 8/12/2026. Plaintiff may file an amended opposition per Code. Clerk to give notice.
5	Zavala vs. Price 30-2026- 01541665-CU- PA-CJC	Motion to Strike Amended Answer Plaintiff Regina M. Zavala's motion to strike the amended unverified answer of defendant Rochelle Niegas Price and to enforce the court order determining defendant's sole liability in Related Case No. 30-2025-01451705-CU-PA-CJC – Riordan Zavala v. Rochelle Niegas Price ("Related Case") is DENIED. Defendant filed an amended verified answer to the Complaint on 4/16/26. (ROA 24.) Plaintiff's request is DENIED as moot. Plaintiff also asks the court to find Defendant is solely liable in this case based on the court's prior ruling in the Related Case. A motion to strike answer is not the proper procedural vehicle for seeking such relief. Clerk to give notice.
6	Belles vs. Toyota Motor Sales, U.S.A., Inc. 30-2024- 01450518-CU- BC-CJC	Motion for Attorney Fees Plaintiff Martin Schwartz's motion for attorney fees is GRANTED as modified. On 10/3/2025, Plaintiff accepted Defendant's 998 Offer. The parties do not dispute Plaintiff is the prevailing party entitled to attorney fees. Plaintiff seeks an award of attorney fees pursuant to section 1794, subdivision (d) under the lodestar method in the amount of \$20,150.00, costs of \$1,061.94, and a lodestar multiplier of 0.3, for a total of \$27,256.94. Defendant Toyota Motor Sales, U.S.A., Inc. challenges both the hourly rate charged, and the total number of billable hours claimed by Plaintiff's attorneys. The hourly rates of Christopher Urner is reduced to \$450, the hourly rate for Jorge L. Acosta is reduced to \$425, and the hourly rate of paralegal Mary M. Zazueta is reduced to \$175. Defendant challenges 0.9 hours billed by Acosta to analyze and annotate Defendant's objection-only

		responses. The time expended in analyzing and annotating objection-only responses is unreasonable and the requested hours for Acosta are reduced by 0.9 hours Further, the request for 9.4 hours for the instant attorneys' fees motion is excessive and reduced by 3.4 hours (0.9 hours for Acosta and 2.5 hours for Urner). The court awards attorney fees of \$15,817.50. Plaintiffs request for a 0.3 multiplier to the lodestar is DENIED. This is a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. Plaintiff filed a memorandum of costs, claiming \$1,061.94 in costs, on 5/6/2026. (ROA 35.) Defendant did not file a motion to strike or tax costs. Therefore, costs are awarded in the amount of \$1,061.94. Plaintiff to give notice.
7	Moran vs. General Motors, LLC 30-2024-01396983-CU-BC-CJC	Motion for Attorney Fees Plaintiff Yanet Moran's motion for attorney fees is DENIED. The court has observed a trend in lemon law cases, nearly all of which settle prior to trial, which is wholly absent from all other civil litigation the court oversees. The lemon law parties wait until the eve of trial, plaintiff files a notice of settlement <i>of entire case</i> without disclosing to the court any terms other than whether the settlement is unconditional or conditional, and then fails to follow through with dismissal, later filing a motion for attorney fees on grounds the parties agreed the court would decide the issue of attorney fees and costs as part of their purported settlement. Under the facts of this case, the chosen course of litigation conduct has no basis in law. "If an entire case is settled or otherwise disposed of, each plaintiff or other party seeking affirmative relief must immediately file written notice of the settlement or other disposition with the court" (Cal. Rules of Court, rule 3.1385(a)(1).) "Except as provided in (c) [conditional settlement] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does

	not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed.” (<i>Id.</i>, rule 3.1385(b).) “If the settlement agreement conditions dismissal of the entire case on the satisfactory completion of specified terms that are not to be performed within 45 days of the settlement, including payment in installment payments, the notice of conditional settlement served and filed by each plaintiff or other party seeking affirmative relief must specify the date by which the dismissal is to be filed.” (<i>Id.</i>, rule 3.1385(c)(1).) “If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire case unless good cause is shown why the case should not be dismissed.” (<i>Id.</i>, rule 3.1385(c)(2).) The use of "must" and "shall" in these provisions establishes the mandatory nature of the court's duty to dismiss after the applicable time period has passed, subject only to the good cause exception. (See <i>Hatlevig v. General Motors LLC</i> (2026) 118 Cal.App.5th 644, 650 [“court entered the order to fulfill the mandatory duty to dismiss settled cases”].) The Judicial Council has adopted for mandatory use Form CM-200, Notice of Settlement of Entire Case (Notice), a form designed to inform the court and parties a settlement has been reached. The Notice states “the entire case has been settled” and requires the signer to state in paragraph 1 whether the settlement is unconditional or conditional. The Notice requires a signature under penalty of perjury from the filer. Due process requires a court to provide notice prior to dismissing a case, including after filing of a Notice. (<i>Lee v. Placer Title Co.</i> (1994) 28 Cal.App.4th 503, 510.) The court’s jurisdiction to enforce a settlement agreement post-dismissal depends on a clear written or oral stipulation of the parties requesting retention of jurisdiction under Code of Civil Procedure section 664.6. Otherwise, the court loses jurisdiction upon dismissal. (See <i>DeSaulles v. Community Hospital of Monterey Peninsula</i> (2016) 62 Cal.4th 1140, 1155 [parties must ask court to retain jurisdiction before dismissal deprives court of jurisdiction].) On 8/25/2025, the eve of trial scheduled for 8/29/2025, plaintiff’s counsel, William Vollbrecht of Consumer Law Experts, PC, filed a Notice stating the parties had reached
--	---

	a conditional settlement of the entire case and representing under penalty of perjury the entire case had been settled and a request for dismissal would be filed no later than 11/24/2025. Other than the Notice, no party provided the court with any details of the settlement, including, e.g., whether it was entered into following acceptance of a Code of Civil Procedure section 998 offer to compromise or whether the parties had agreed to request the court to retain jurisdiction to enforce settlement terms under Code of Civil Procedure section 664.6. In reliance on plaintiff's representation, on 8/25/2025, the court vacated all reporting requirements and ordered the parties to comply with California Rules of Court, rule 3.1385 by filing a dismissal upon completion of settlement terms on or before 11/24/2025. The date of 11/24/2025 came and went with no action. On 12/12/2025, plaintiff filed a memorandum of costs, and on 2/27/2026, plaintiff filed a motion for attorney fees, designating a hearing date for 6/5/2026. Because the court considered the case settled based upon counsel's representation the entire case had settled, on 4/15/2026, the court entered an order dismissing the case and vacating the scheduled motion. Two days later, on 4/17/2026, plaintiff filed a new motion for attorney fees, with a hearing date set for 7/24/2026. In the motion, the court was informed plaintiff had accepted defendant's 998 offer of compromise on 8/19/2025, approximately eight months before the motion was filed. The 998 offer provided, inter alia, (1) defendant agreed to pay plaintiff's attorney fees, expenses, and costs, which "may be determined by the court via noticed motion"; (2) the court would retain jurisdiction to enforce the offer of compromise under Code of Civil Procedure section 664.6; and (3) plaintiff would file a request for dismissal of the entire action with prejudice, within 5 business days of receiving all payments from defendant. Plaintiff never filed a request for dismissal, and the parties never requested the court retain jurisdiction under section 664.6. If plaintiff wished to have a motion for attorney fees heard, it was plaintiff's duty to file a motion and have it heard prior to the date designated in the Notice.
--	---

		Pursuant to its mandatory duty, and the parties having failed to show good cause after notice had been given by the court, the court dismissed the case on 4/15/2026, whereupon the court lost jurisdiction to hear any motion for attorney fees. The court considers the filing of the Notice under penalty of perjury representing the entire case has been settled a misrepresentation to the court if, indeed, additional law and motion over settlement terms is contemplated, as it was here. Settlement of the "entire case" means just that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See <i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 535 ["A settlement with open material terms is not a 'conditional settlement.' To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms."].) Further, plaintiff "must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6." (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, "Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court's own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6" (<i>Id.</i>) Because the court has lost jurisdiction and the issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the 998 offer, and/or whether some other procedure was viable. The court rules only that the chosen course of action was not. Clerk to give notice.
8	Johnson vs. Smith 30-2025- 01499232-CU- PA-CJC	Motion to Strike Portions of Complaint The motion to strike portions of Plaintiff's complaint filed by defendants Raymond Clark Smith IV and Blake Smith is DENIED.

		Defendants move to strike from the complaint allegations they contend are conclusory (see Compl., ¶¶ 5, 19, 25, 40) and irrelevant (id., ¶¶2-4, 16-19, 24-25, 32, 34), as well as punitive damages allegations (id., ¶¶ 21-27, 36, 37, 43) and the prayer for punitive damages (id., prayer ¶ d). All the purported conclusory and irrelevant allegations are matters for a jury to determine when deciding negligence. The court will not strike them from the complaint. The complaint also sufficiently alleges facts as to each defendant to support a prayer for punitive damages on grounds defendants demonstrated a conscious disregard of the safety of others (as to Raymond) and knowingly entrusted a street-legal golf cart to Raymond despite knowing he lacked a valid driver's license and the golf cart lacked safety features (as to Blake). Defendants are ORDERED to file an answer within 5 days. Trial is scheduled for 2/18/2028 at 11:30 AM. Jury fees must be paid within 5 days. CMC scheduled for 9/3/2026 is VACATED. Clerk to give notice.
9	Singleton vs. Santa Ana Unified School District 30-2026-01544048-CU-WM-CJC	Demurrer to Petition for Writ of Mandate Defendant Santa Ana Unified School District's unopposed demurrer to the petition for writ of mandate and complaint for declaratory and injunctive relief is OVERRULED, in part, and SUSTAINED in part, without leave to amend. <u>Second Cause of Action: Declaratory Relief</u> Defendant argues the second cause of action for declaratory relief fails as a matter of law pursuant to the California Supreme Court's decision in <i>City of Gilroy v. Superior Court</i> (2026) 19 Cal.5th 38 (<i>Gilroy</i>). Defendant is incorrect. <i>Gilroy</i> addressed whether the California Public Records Act ("CPRA") authorizes the trial court to grant declaratory relief for violations of the CPRA where it was undisputed an agency had disclosed all existing records that were responsive to a records request and not exempt from disclosure. (<i>Gilroy, supra</i>, 19 Cal.5th at. p. 45.) In <i>Gilroy</i>, the Supreme Court "conclude[d] from the statutory text, considered in light of the CPRA's purpose of increasing freedom of information, that declaratory relief under the CPRA is available in at least some

		circumstances in which all existing responsive, nonexempt records have been disclosed in response to a records request . . . At a minimum, declaratory relief is available under the CPRA where the declaration would resolve an ongoing dispute regarding the parties' rights and obligations in a manner that has some likelihood of affecting future requests for public records or future conduct relating to such requests." (<i>Id.</i> at pp. 45-46 [cleaned up].) Based on its interpretation of the CPRA, the court held the first two of the trial court's declarations, which concerned the defendant's responses to public records requests involving police bodycam footage, addressed contested issues regarding the defendant's handling of records requests that were sufficiently likely to recur. The court explained in these circumstances, declaratory relief was appropriate to help guide the parties' future conduct and inform their rights and responsibilities under the CPRA. (<i>Gilroy, supra</i>, 19 Cal.5th at p. 54.) The court declined to address the third declaration, which declared the city's response to one request was untimely, and whether it would have supported an action for declaratory relief if raised in isolation. (<i>Id.</i> at p. 56.) The court also expressly declined to consider whether declaratory relief is available in response to merely technical violations of the CPRA such as a delayed initial response because, "while future cases may present that question, . . . [the court] need not interpret the statute so expansively in order to resolve the case before [it]." (<i>Gilroy, supra</i>, 19 Cal.5th at p. 62.) The court confirmed its holding was narrower: "that the statute allows for declaratory relief at least when it functions to address an ongoing dispute and guide the parties' future conduct with respect to the parties' rights and responsibilities under the CPRA". (<i>Ibid.</i>) Here, the second cause of action seeks five declarations, at least one of which concerns an ongoing dispute likely to recur. Plaintiff seeks a declaration Defendant "violated and continues to violate the CPRA by . . . delaying, withholding, or failing to produce nonexempt records responsive to the requests at issue[]" (Petition, ¶ 73) and prays for a declaratory judgment that Defendant violated the CPRA by "unlawfully withholding records through unreasonable delay and incomplete production[]" (Petition, ¶ 82(d)). This declaration is based partly on Plaintiff's allegations Defendant's practice of routing public records requests to outside legal counsel rather
--	--	--

	than processing them through ordinary administrative channels resulting in delay. (See Petition, ¶¶ 38-47.) The dispute therefore concerns a continuing practice that will affect future requests. Accordingly, Plaintiff has stated a cause of action for declaratory relief under the CPRA. Because a general demurrer does not lie to only portion of a cause of action, the court declines to address Defendant's arguments regarding the remaining declarations sought in the second cause of action. (See <i>Daniels v. Select Portfolio Servicing, Inc.</i> (2016) 246 Cal.App.4th 1150, 1167.) The demurrer to the second cause of action is OVERRULED. <u>Third Cause of Action: Injunctive Relief</u> Under California law, injunctive relief is a remedy, not a cause of action. (<i>City of South Pasadena v. Department of Transportation</i> (1994) 29 Cal.App.4th 1280, 1293.) The demurrer to the third cause of action is SUSTAINED without leave to amend. Motion to Strike Portions of Writ of Mandate Defendant's motion to strike is DENIED. Defendant moves to strike irrelevant matter and the prayer for attorney's fees from the petition. <u>Irrelevant Matter</u> Defendant argues paragraphs 38 through 47 of the Petition (constituting the sections titled "Prior Public Records Requests (Background)," "District Policies Confirm Electronic Communications Are District Records," and "District Practice of Routing Public Records Requests to Legal Counsel Resulting in Delay") are irrelevant matter not essential to any cause of action. (See Code Civ. Proc., §§ 431.10, subd. (b)(1), 436, subd. (a).) Defendant also argues the paragraphs serve only to manufacture the factual predicate for a <i>Gilroy</i> "ongoing dispute" that the Petition cannot otherwise establish. The court disagrees for the reasons stated in its ruling on Defendant's demurrer. <u>Attorney Fees</u> Defendant moves to strike the prayer for attorney fees on the grounds that Plaintiff is not entitled to recover attorney fees because he is a self-represented litigant.
--	--

		Plaintiff concedes this point but argues he may recover fees incurred in consultations with a retained attorney. Plaintiff is correct. (See <i>Mix v. Tumanjan Development Corp.</i> (2002) 102 Cal.App.4th 1318, 1324.) Defendant is ORDERED to file an answer within 10 days. Clerk to give notice.
10	Wang vs. Mayenne Medical 30-2025- 01532205-CU- MM-CJC	Demurrer to Complaint Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim's demurrer to Plaintiffs Yisha Wang and Willie Hungyi Wei's complaint is OVERRULED. <u>First, third, and fourth causes of action for battery and breach of fiduciary duty</u> Redundancy of a cause of action is not grounds for sustaining a demurrer. (See <i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 889-890.) <u>Fifth cause of action for fraud</u> Plaintiffs sufficiently allege a cause of action for fraud. (Compl. ¶¶ 77-88.) Motion to Strike Complaint Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim's motion to strike portions of Plaintiffs' complaint is GRANTED. Plaintiffs' allegations are directly related to the manner in which Defendants provided professional medical services. (See <i>Central Pathology Service Medical Clinic, Inc. v. Superior Court</i> (1992) 3 Cal.4th 181, 191-192.) As such, Plaintiffs were required to obtain an order from the Court allowing them to seek punitive damages pursuant to Code of Civil Procedure section 425.13. The Court ORDERS Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim to file an answer within 10 days. Clerk to give notice.
11	Young vs. Ford Motor Company	Motion for Summary Adjudication

	30-2023-01364792-CU-BC-CJC	Ford Motor Company's unopposed motion for summary adjudication is GRANTED. Defendant moves for summary adjudication against Plaintiff on its fifth cause of action for fraudulent inducement – concealment. Defendant contends (1) it had no knowledge of a defect at time of sale, (2) it had no transactional relationship triggering a duty to disclose a known defect at time of sale, and (3) the economic loss rule bars Plaintiff's claim. (Notice, p. 1.) Defendant presents undisputed facts Plaintiff purchased the subject vehicle on 4/6/2018 and Ford was not a party to the sale transaction, nor is it alleged to be a principal of the dealership. (UMFs 1-3.) Plaintiff's discovery responses failed to identify specific defects of which Defendant had exclusive knowledge but failed to disclose. (UMFs 7-12.) "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40 (<i>Rattagan</i>).) "A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of
--	--	--

		these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (<i>Rattagan, supra</i>, 17 Cal.5th at 40-41 [cleaned up].) Defendant has met its burden to demonstrate there is no triable issue of fact as to elements of Plaintiff’s claim, including the requirement that Defendant be in a direct transactional relationship with Plaintiff and that Defendant be aware of a defect in Plaintiffs’ vehicle that it was unwilling or unable to fix. (See <i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345–46.) The Court declines to address Defendant’s arguments regarding the economic loss rule. Clerk to give notice.
12	Justice vs. Thiede 30-2023- 01355666-CU- MM-CJC	Motion for Summary Judgment/Adjudication Defendants Theodore J. Urbanski, Jr., D.D.S. and Theodore J. Urbanski, D.D.S., Inc.’s motion for summary adjudication is GRANTED as to medical battery and DENIED as to medical negligence. Summary judgment is DENIED. Plaintiff’s objections to evidence (ROA 265) are OVERRULED. Plaintiff concedes the acts constituting medical battery are attributable only to co-defendant, Craig C. Thiede, D.D.S. As to medical negligence, plaintiffs’ expert declarations of Jay Grossman, D.D.S. and Peter K. Moy, D.M.D. are sufficient to create a material dispute of fact as to whether Dr. Urbanski’s treatment fell below the standard of care and caused or contributed to decedent’s death, including being present for the November 3, 2022 procedure with the intention of participating when he knew he was on disability due to his PTSD; failing to step in, or ask if help was needed, and perform resuscitative efforts; failing to recognize when to call 911; and failing to call 911 or directing someone to call 911 by at least 8:43 a.m. (See <i>Hanson v. Grode</i> (1999) 76 Cal.App.4th 601, 607 [“When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment

		unless the plaintiff comes forward with conflicting expert evidence."]) Clerk to give notice.
13	V. LYNN HODGE, as Trustee of the PLAZA DEL SOL REAL ESTATE TRUST UNDER DECLARATION OF TRUST DATED FEBRUARY 9, 1996 AS AMENDED, a California Revocable Trust vs. OC MEDIA TOWER, L.P. 30-2021- 01227550-CU- FR-CJC	Motion for Summary Judgment/Adjudication Continued to 8/28/2026 pursuant to parties' stipulation.